

CITY COUNCIL OF MONTEREY PARK
THE CITY COUNCIL ACTING ON BEHALF OF THE SUCCESSOR AGENCY OF THE FORMER
REDEVELOPMENT AGENCY, THE HOUSING AUTHORITY, THE MONTEREY PARK FINANCING
AUTHORITY AND THE MONTEREY PARK GEOLOGIC HAZARD ABATEMENT DISTRICT
AGENDA

REGULAR CITY COUNCIL MEETING
MONTEREY PARK CITY HALL COUNCIL CHAMBERS
320 W. NEWMARK AVENUE, MONTEREY PARK, CA 91754

Wednesday
December 6, 2023
6:30 p.m.

MISSION STATEMENT

The mission of the City of Monterey Park is to provide excellent services
to enhance the quality of life for our entire community.

LAND ACKNOWLEDGMENT

We would like to acknowledge that the land we inhabit today was once known as
Tovangaar, the home of the Gabrieleño-Tongva people. We show our respect to the
Gabrieleño-Tongva people, as well as all Indigenous people, past, present, and future,
and honor their labor as original caretakers of this land. We commit to uplifting the
Gabrieleño-Tongva people, invite you to acknowledge the history, and join us in caring
for this land.

GENERAL INFORMATION

Documents related to an Agenda item are available to the public in the City Clerk's Office located at 320 West Newmark Avenue, Monterey Park, CA 91754, during normal business hours and the City's website at <http://www.montereypark.ca.gov/AgendaCenter/City-Council-17>.

The public may watch the meeting live on the city's cable channel MPKTV (AT&T U-verse, channel 99 or Charter Communications, channel 182) or by visiting the city's website at <http://www.montereypark.ca.gov/133/City-Council-Meeting-Videos>. Per the Americans with Disabilities Act, if you need special assistance to participate in this meeting, please call City Hall at (626) 307-1359 for reasonable accommodation at least 24 hours before a meeting. Council Chambers are wheelchair accessible.

PUBLIC PARTICIPATION

You may speak up to 5 minutes on Agenda item. You may combine up to 2 minutes of time with another person's speaking. No person may speak more than a total of 10 minutes. The Mayor and City Council may change the amount of time allowed for speakers. Written Communication will be accepted up to 24 hours before the meeting via email to mpclerk@montereypark.ca.gov.

While all comments are welcome, the Brown Act does not allow the City Council to take action on any item not on the agenda. The Council may briefly respond to comments after Public Communications is closed. Persons may, in addition to any other matter within the City Council's subject-matter jurisdiction, comment on Agenda Items at this time. If you provide public comment on a specific Agenda item at this time, however, you cannot later provide comments at the time the Agenda Item is considered.

CALL TO ORDER Mayor
FLAG SALUTE The Monterey Park Fire Explores
ROLL CALL Henry Lo, Vinh Ngo, Jose Sanchez, Thomas Wong, Yvonne Yiu

AGENDA ADDITIONS, DELETIONS, CHANGES AND ADOPTIONS

PUBLIC COMMUNICATIONS

STAFF COMMUNICATIONS:

- Library
- Finance Department
- Recreation Services Department

[1.] PRESENTATION – None.

[2.] OLD BUSINESS – None.

[3.] CONSENT CALENDAR ITEM NOS. 3A-3D

All items under the Consent Calendar are considered by the City Council to be routine and will be enacted by one motion. Specific items may be removed from the Consent Calendar at the request of any member of the City Council for separate consideration.

3-A. RECEIVE AND FILE - DEVELOPMENT IMPACT FEES FOR FISCAL YEAR 2022-2023

It is recommended that the City Council consider:

- (1) Receive and file the Annual Report on Development Impact Fees for Fiscal Year 2022-2023; and
- (2) Taking such additional, related, action that may be desirable.

3-B. PROFESSIONAL SERVICES AGREEMENT WITH USI INSURANCE SERVICES, LLC TO PROVIDE BENEFIT BROKER SERVICES FOR THE CITY OF MONTEREY PARK

It is recommended that the City Council consider:

- (1) Authorize the City Manager to execute a standard professional services agreement with USI Insurance Services, LLC in a form approved by the City Attorney, to provide benefit broker services for the City of Monterey Park; and
- (2) Taking such additional, related, action that may be desirable.

3-C. WAIVE FURTHER READING AND ADOPT AN ORDINANCE AMENDING THE MONTEREY PARK MUNICIPAL CODE (“MPMC”) REGULATING PERMIT PARKING

It is recommended that the City Council consider:

- (1) Waiving the second reading and adopting the proposed ordinance; and
- (2) Taking such additional, related, action that may be desirable.

3-D. RECEIVE AND FILE STAFF REPORT SUMMARIZING THE STATUS OF EMERGENCY REPAIRS OF THE MONTEREY PASS ROAD WATER LINE

It is recommended that the City Council consider:

- (1) Receive and File Staff Report Summarizing the Status of Emergency Repairs of the Monterey Pass Road Water Line
- (2) Taking such additional, related, action that may be desirable.

[4.] PUBLIC HEARING

4-A. CONSIDERATION AND POSSIBLE ACTION TO ADOPT ORDINANCES ESTABLISHING WATER AND WASTEWATER (SEWER) RATES

It is recommended that the City Council consider:

- (1) Opening the public hearing;
- (2) Receiving all written and verbal testimony regarding the proposed rate increases;
- (3) Determining whether there is a majority protest against the proposed rate increases;
- (4) If no majority protest exists, that the City Council introduce and waive first reading of Ordinance No.____– Setting the amount of Water Rates and Charges (Attachment 1);
- (5) If no majority protest exists, that the City Council introduce and waive first reading of Ordinance No.____– Setting the amount of Wastewater (Sewer) Rates and Charges (Attachment 2); and
- (6) Taking such additional, related, action that may be desirable.

[5.] NEW BUSINESS – None.

[6.] CITY COMMUNICATIONS (CITY COUNCIL)

6-A. A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MONTEREY PARK, CALIFORNIA, DECLARING THE MONTH OF DECEMBER 2023 AS HUMAN RIGHTS MONTH IN COMMEMORATION OF THE 75TH ANNIVERSARY OF THE UNITED NATION'S UNIVERSAL DECLARATION OF HUMAN RIGHTS (Requested by Mayor Sanchez)

It is recommended that the City Council consider:

- (1) Adopting a Resolution declaring the month of December 2023 as Human Rights Month in commemoration of the 75th anniversary of the United Nation's Universal Declaration of Human Rights; and
- (2) Taking such additional, related, action that may be desirable.

[7.] FUTURE AGENDA ITEMS

[8.] CLOSED SESSION (IF REQUIRED; CITY ATTORNEY TO ANNOUNCE)

ADJOURN



City Council Staff Report

DATE: December 6, 2023

AGENDA ITEM NO: Consent Calendar - 3A

TO: The Honorable Mayor and City Council
FROM: Laura Borjon, Finance Manager
SUBJECT: **RECEIVE AND FILE** - Development Impact Fees for Fiscal Year 2022-2023

RECOMMENDATION:

It is recommended that the City Council consider:

1. Receive and file the Annual Report on Development Impact Fees for Fiscal Year 2022-2023; and
2. Taking such additional, related, action that may be desirable.

EXECUTIVE SUMMARY:

Government Code § 66006 requires cities to annually report on the status of Development Impact Fees, including the collection of revenue and expenditures of these funds. The report attached as "Attachment 1" and incorporated by references summarizes the required financial information for Fiscal Year 2022-2023.

BACKGROUND:

The Government Code contains certain procedural requirements that apply to the collection of development impact fees and the expenditure of these revenues. Government Code §66006 specifies accountability and annual reporting requirements pertaining to development impact fees. Specifically, cities must report annually, within 180 days of the end of the fiscal year:

1. A description of the fee type in the account;
2. The amount of the fee;
3. Beginning and ending balances;
4. The amount of fees collected and the interest earned
5. Identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.
6. Identification of an approximate date by which the construction of the public improvement will commence if the city determines that sufficient funds have been collected to complete financing on an incomplete public improvement and the public improvement remains incomplete.

7. A description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the interest rate that the account or fund will receive on the loan.
8. The amount of refunds made and any allocations pursuant to Government Code § 66001(f).

The attached report presents a review only of the development impact fee activity, by account, for the fiscal year. It does not include any recommendations for any fee changes.

FISCAL IMPACT:

There is no fiscal impact to receive and file the Annual Report on Development Impact Fees for Fiscal Year 2022-2023. The Fund balances as of June 30, 2023, are included in Attachment 1.

Respectfully submitted by:



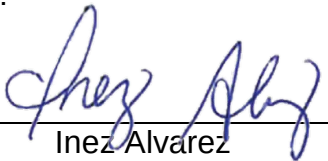
Laura Borjon
Finance Manager

Reviewed by:



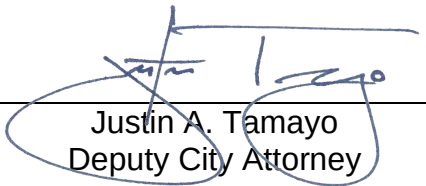
Martha Garcia
Director of Finance

Approved by:



Inez Alvarez
City Manager

Reviewed by:



Justin A. Tamayo
Deputy City Attorney

ATTACHMENT:

1. Development Impact Fees Annual Report Fiscal Year 2022-2023

ATTACHMENT 1
Development Impact Fees Annual Report
Fiscal Year 2022-2023



Development Impact Fees Annual Report Fiscal Year 2022-2023

SUMMARY:

Pursuant to Chapter 3.110 of the Monterey Park Municipal Code ("MPMC") and Government Code Section 66006, et seq. (the Mitigation Fee Act), local agencies are authorized to condition approval of development projects on the payment of development impact fees for the purpose of defraying all or a portion of the cost of public facilities related to the development project. Any local agency that imposes a development impact fee is required to make available to the public a summary of each mitigation fee account on an annual basis. At this time, the City imposes nine types of development impact fees on development projects: (1) Law enforcement; (2) Fire suppression/medic; (3) Public meeting facilities; (4) Library facilities and collection; (5) Water distribution; (6) Sewer collection; (7) Aquatics facilities; (8) Park land and improvements; (9) Circulation.

BACKGROUND:

The Mitigation Fee Act, regulates the means by which public agencies collect, maintain, and spend development impact fees imposed on development projects. The regulations include specific requirements pertaining to governmental accounting, spending, and annual reporting of development impact fees. Each year, within the first 180 days following the previous fiscal year, the City is required to make available to the public a summary of each mitigation fee account ("Annual Report").

REPORTING REQUIREMENTS:

The City imposes nine types of development impact fees on development projects. The City records the nine fees in five funds: (1) Circulation; (2) Law enforcement and Fire suppression/medic; (3) Facilities (library, public meeting, and aquatics) and Park land and improvement; (4) Water distribution; and (5) Sewer collection. Accordingly, as required in the Mitigation Fee Act, the City must make an Annual Report which includes:

- 1) A brief description of the type of fee in the account or fund;
- 2) The amount of the fee;
- 3) The beginning and ending balance of the account or fund;
- 4) The amount of the fees collected, and interest earned;
- 5) Identification of each public improvement on which fees were expended and the total amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees;
- 6) An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, and the public improvement remains incomplete;

- 7) A description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan; and
- 8) The amount of any refunds made pursuant to Government Code Section 66001(e) and the amount of any allocations pursuant to Government Code Section 66001(f).

Furthermore, Government Code Section 66008 provides that a local agency must expend a fee for public improvements solely and exclusively for the purpose for which it is collected. The fee may not be levied, collected, or imposed for general revenue purposes nor may it be comingled with any other account (see, MPMC section 3.110.070).

FUND BALANCE AT JUNE 30, 2023:

FUND NO.	FUND NAME	FUND BALANCE
204	Circulation	\$332,588
205	Law Enforcement and Fire Suppression/Medic Facilities (Park, Library, Public Meeting and Aquatics), Park Land and Improvements	(\$79,933)
231	Water Distribution	\$870,608
409	Sewer Collection	\$534,613
419		\$44,965

CIRCULATION FEES:

Pursuant to MPMC Chapter 3.110, the Circulation Fee is collected to fund traffic circulation (streets, signals and bridges) infrastructure improvements. The objective of the Circulation Development Impact Fee is to improve street lanes, intersections, and traffic management, thus mitigating traffic impacts which are contributed from all new development.

	Circulation (Streets, Signals, Bridges)	Unit/Square Foot
Detached Dwelling Units	\$1,791	Per dwelling unit
Attached Dwelling Units	\$1,129	Per dwelling unit
Commercial Lodging Units	\$942	Per dwelling unit
Retail/Services/Office Uses	\$3.216	Per square foot
Manufacturing/Industrial Uses	\$1.305	Per square foot
Institutional Uses	\$0.879	Per square foot

Circulation Fees Revenue and Expenditures:

Fiscal Year	Beginning Fund Balance	Fees Collected	Interest Earned	Expenditures	Transfers	Ending Balance
2022-23	\$123,540	\$201,711	\$7,337	\$0	\$0	\$332,588

There are no funds budgeted in FY2023-2024. No transfers or loans occurred in fiscal years reported on this report. There were no refunds or allocations pursuant to Government Code Section 66001.

LAW ENFORCEMENT AND FIRE SUPPRESSION/MEDIC FEES:

Pursuant to MPMC Chapter 3.110, these fees finance capital costs, including Police facilities, vehicles, equipment, Fire Suppression facilities and Fire equipment, to minimize the impact that new development has on the City's public services and public facilities.

Pursuant to MPMC Chapter 3.110, the Fees are updated based upon the gross square footage of nonresidential development and number of residential dwelling units as follows:

	Law Enforcement	Fire Suppression/Medic	Unit/Square Foot
Detached Dwelling Units	\$526	\$640	Per dwelling unit
Attached Dwelling Units	\$503	\$418	Per dwelling unit
Commercial Lodging Units	\$191	\$381	Per lodging unit
Retail/Services/Office Uses	\$0.370	\$0.350	Per square foot
Manufacturing/Industrial Uses	\$0.050	\$0.019	Per square foot
Institutional Uses	\$0.073	\$0.053	Per square foot

Law Enforcement and Fire Suppression/Medic Revenues and Expenditures:

Fiscal Year	Beginning Fund Balance	Fees Collected	Interest Earned	Expenditures	Transfers	Ending Fund Balance
2022-23	(\$128,279)	\$48,002	\$345	\$0	\$0	(\$79,933)

Status of Projects:

There are no funds budgeted in FY2023-2024. No transfers or loans occurred in fiscal years reported on this report. There were no refunds or allocations pursuant to Government Code Section 66001.

FACILITIES (LIBRARY, PUBLIC MEETING AND AQUATICS) PARK LAND AND IMPROVEMENT FEES:

Pursuant to MPMC Chapter 3.110, the Facilities and Park land/improvement fees are collected to fund facility (library, public meeting, and aquatics) improvements/infrastructure and park land improvements/acquisition. The objective of the Facilities (library, public meeting, and aquatics), and Park land/improvement fees is to provide parks, support facility improvements and additional park land acquisition to serve the needs of new residents.

	Park Land Acquisition & Improvements	Library	Public Meeting Facilities	Aquatics	Unit/Square Foot
Detached Dwelling Units	\$3,677	\$191	\$1,660	\$732	Per dwelling unit
Attached Dwelling Units	\$3,730	\$194	\$1,684	\$743	Per dwelling unit
Commercial Lodging Units	\$17				Per dwelling unit
Retail/Services/Office Uses	\$0.064				Per square foot
Manufacturing/Industrial	\$0.032				Per square foot
Institutional Uses	\$0.161				Per square foot

Facilities (Park, Library, Public and Aquatics) Revenues and Expenditures:

Fiscal Year	Beginning Fund Balance	Fees Collected	Interest Earned	Expenditures	Transfers	Ending Fund Balance
2022-2023	\$650,990	\$206,464	\$19,487	\$6,333	\$0	\$870,608

FY2022-2023 Expenditures:

Object Code	Object Code Description	Description	Expenditures
5501	Capital Expenditure	Barnes Park Fitness Court	\$6,333
			<u>\$6,333</u>

FY2023-2024 Budget Allocation:

Object Code	Object Code Description	Description	Amount Allocated
5311	Operations	Recreation Supplies	\$56,000
5501	Capital Expenditure	Library Story Room	30,000
5501	Capital Expenditure	George Elder Park Court	40,000
5501	Capital Expenditure	Barnes Park Gym Restrooms	230,000
5501	Capital Expenditure	Langley Restrooms	200,000
			<u>556,000</u>

Status of Projects:

	Total DIF Expenditures at 6/30/2023	Total Other Funds Expenditures at 6/30/2023	Total Project Expenditures at 6/30/2023	DIF Percent of Total	Status
Barnes Gym Restrooms	\$6,333	\$0	\$6,333	100.00%	Ongoing
Langley Restroom Upgrades	\$0	\$0	\$0	0%	Ongoing
Library Storyroom Expansion	\$0	\$0	\$0	0%	Ongoing
George Elder Park Court	\$0	\$0	\$0	0%	Ongoing

No transfers or loans occurred in fiscal years reported on this report. There were no refunds or allocations pursuant to Government Code Section 66001.

WATER DISTRIBUTION FEES:

Pursuant to MPMC Chapter 3.110, the Water Distribution Fees are collected to fund water system infrastructure improvements, including reservoirs, treatment plants, pump stations, SCADA system, wells, utility office rehabilitation, water valves, and fire protection upgrades. The objective of the fees is to meet all water demands with appropriate water operation and treatment facilities to mitigate development impacts on the existing water system infrastructure.

	Water Distribution	Unit/Square Foot
Detached Dwelling Units	\$2,786	Per dwelling unit
Attached Dwelling Units	\$2,570	Per dwelling unit
Commercial Lodging Units	\$1,672	Per dwelling unit
Retail/Services/Office Uses	\$0.769	Per square foot
Manufacturing/Industrial Uses	\$0.386	Per square foot
Institutional Uses	\$0.528	Per square foot

Water Distribution Revenues and Expenditures:

Fiscal Year	Beginning Fund Balance	Fees Collected	Interest Earned	Expenditures	Transfers	Ending Fund Balance
2022-2023	\$502,138	\$131,818	\$11,701	\$111,043	\$0	\$534,613

FY2023-2024 Budget Allocation:

Object Code	Object Code Description	Description	Amount Allocated
5501	Capital Expenditure	PLC Upgrade	\$212,659
			<u>\$212,659</u>

No transfers or loans occurred in fiscal years reported on this report. There were no refunds or allocations pursuant to Government Code Section 66001.

SEWER COLLECTION FEES:

Pursuant to MPMC Chapter 3.110, the Sewer Collection Development Impact Fees are collected to fund construction and system management improvements of the sewer collection system, including sanitary sewer system map book updates, GPS inventory, a computerized maintenance management system, FOG program, closed-circuit television, asset management plan, sewer master plan update, sewer field equipment upgrade, database/system training, emergency overflow plan, flow monitoring, sewer upgrades, and annual inspection program. The objective of the fees is to upgrade sewer collection system, thus mitigating development-generated growth-needs which impact to the City sewage service.

	Sewer Collection	Unit/Square Foot
Detached Dwelling Units	\$385	Per dwelling unit
Attached Dwelling Units	\$356	Per dwelling unit
Commercial Lodging Units	\$231	Per dwelling unit
Retail/Services/Office Uses	\$0.138	Per square foot
Manufacturing/Industrial Uses	\$0.069	Per square foot
Institutional Uses	\$0.095	Per square foot

Sewer Collection Revenues and Expenditures:

Fiscal Year	Beginning Fund Balance	Fees Collected	Interest Earned	Expenditures	Transfers	Ending Fund Balance
2022-2023	\$71,462	\$19,920	\$1,538	\$47,955	\$0	\$44,965

FY2022-2023 Expenditures:

Object Code	Object Code Description	Description	Expenditures
5501	Capital Expenditure	Sewer Master Plan	\$47,955
			<u>\$47,955</u>

There are no funds budgeted in FY2023-2024. No transfers or loans occurred in fiscal years reported on this report. There were no refunds or allocations pursuant to Government Code Section 66001.



City Council Staff Report

DATE: December 6, 2023

AGENDA ITEM NO: Consent Calendar - 3B

TO: The Honorable Mayor and City Council

FROM: Christine Tomikawa, Director of Human Resources and Risk Management

SUBJECT: Professional Services Agreement with USI Insurance Services, LLC to provide Benefit Broker services for the City of Monterey Park

RECOMMENDATION:

Staff recommends that the City Council:

1. Authorize the City Manager to execute a standard professional services agreement with USI Insurance Services, LLC in a form approved by the City Attorney, to provide benefit broker services for the City of Monterey Park; and
2. Take such additional, related, action that may be desirable.

EXECUTIVE SUMMARY:

The City utilizes a benefit broker to negotiate premiums for ancillary benefits such as Employee Assistance Program ("EAP"), dental, vision, and voluntary life insurance plans that city employees use. USI Insurance Services, LLC ("USI") provides ancillary benefits for employers and has a dedicated division specifically for public sector agencies to seek out pooled premium rates. Staff recommends contracting with USI to finalize ancillary plans and carriers for city employee benefits.

BACKGROUND:

In January 2023, the carrier for the EAP benefit plan informed the City the benefit plan would be cancelled effective June 30, 2023. The City did not receive information or assistance from the benefit broker of record to discuss finding another EAP plan. To keep a viable EAP plan in place, staff worked with USI to secure an EAP plan effective July 1, 2023. The EAP plan provided savings for premium cost and the City was able to add additional EAP sessions (from 5 to 8) for city employees who utilize the benefit.

Staff requested USI to provide a quote for other ancillary benefits. USI has a specific public sector division that pools different size public agencies together to find benefit carriers and premium rates for benefits such as dental, vision, and life insurance. By pooling public agencies together, USI leverages a larger pool of users to negotiate better premium rates and plans.

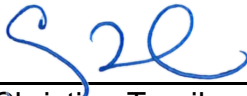
The quote from USI for the premium rates for dental, vision, life insurance, and long-term disability will provide savings to city employees while keeping the same plan benefit

levels. For example, Delta Dental family monthly premium is currently \$149.98 and USI's proposed rate is \$127.71 per month, a savings of approximately \$22 a month. USI's proposal rates would be effective January 1, 2024 through December 31, 2025. Staff recommends authorizing the three-year professional services contract with USI to enroll in USI's public sector benefits pool.

FISCAL IMPACT:

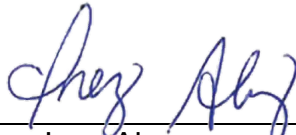
There are minimal fiscal impacts to the City for administering the proposed contract. All payments to the vendor will be made through commissions collected from any services paid for by employees.

Respectfully submitted by:



Christine Tomikawa
Director of Human Resources
and Risk Management

Approved by:



Inez Alvarez
City Manager

Reviewed by:



Karl H. Berger
City Attorney

ATTACHMENTS:

1. Exhibit A – USI Scope of Services
2. Exhibit B – Schedule of Compensation

ATTACHMENT 1

Exhibit A – USI Scope of Services

Exhibit A

Scope of Services

USI will provide the following services:

Assistance to Human Resources (HR) Department (as-needed)

1. Create a Service Calendar that includes milestones for the plan year such as fact finding/strategic planning, renewal presentation, open enrollment planning and communication strategy campaign;
2. Meet as requested by City's HR Department for actively assisting in the management of City's employee benefits plans and programs;
3. Assist in the design, implementation and administration of new and existing programs;
4. Ensure compliance of all programs. Regularly and timely communicate to the City changes and proposed changes in state and federal laws that may impact City's employee benefit plans and programs;
5. Recommend procedures and/or policies City should implement to comply with federal and state law;
6. Provide day-to-day consultation on any and all matters relating to the City's employee benefit program and administration;
7. Provide HR with general guidance on items such as trends in benefit plans, methods for improving cost containment and administration;
8. Provide monthly distribution of compliance updates, population health management, and executive series virtual presentations on employee benefits topics; and
9. Provide a subscription to Mineral HR, formerly ThinkHR.

Evaluation and Analysis

1. Review and make recommendations to City for value-added benefit plans and programs. For example, if there are other benefit plans or programs the City can participate in, USI will evaluate the program/plan for the City to consider or if current benefit plans/programs provide additional enhancements.
2. At designated intervals, evaluate and report the performance of plan providers to HR, and compliance with applicable law;
3. Review and prepare an analysis of usage reports submitted by plan providers. Make recommendations regarding the content of the reports;
4. As requested by the HR Director and/or HR Manager, provide comparison reports of other employers' benefit plans and programs to determine competitiveness; and
5. Maintain full and accurate records with respect to all matters and services provided to City's benefit plans and programs.

Coordination of the Request for Proposal (RFP) Process and Contract Administration

1. Develop RFPs and associated Cost Estimates consistent with City's policies. If the City wants to conduct an RFP for benefit carrier/plan/programs, USI can assist with the RFP process by managing the RFP process and prepare a comprehensive report of the proposals received in response to the RFP. Evaluate proposals and recommend those proposals deemed acceptable for further analysis and review. Recommend proposals to the HR Director and HR Manager. Develop responses to protests from the RFP process. Make presentations regarding the RFP recommendations to HR Director and/or HR Manager for consideration;
2. Administer RFPs for all employee benefit plans;
3. Make recommendations for items of negotiation with benefit plan providers including, without limitation, plan design, cost (rates), and quality of services; and

4. Assist in reviewing and implementing agreements with selected health, welfare, and Third-Party Administration (TPA) providers in accordance with City's timelines and requirements.

Open Enrollment and Communication Support

1. Assist with the implementation and communication of new programs or changes to existing programs by providing communication materials and meeting support which will include, without limitation, attending and presenting information at Open Enrollment meetings either virtual or in-person.
2. Assist with securing City's employee benefits vendors to participate in the annual benefit fair. This includes collecting benefit information, giveaways, and raffle prizes.
3. Assist in the development of communication strategies and documents for the purpose of educating employees on how to get the most out of the City's employee benefit package. This can include a PDF format of a benefits guide, flipbook guide, USI's Benefits 2 Go Mobile App, e-benefit summary booklets, and on-demand presentation via Brainshark. The Annual Notices will also be included in the benefits guide.

ATTACHMENT 2

Exhibit B – Schedule of Compensation

EXHIBIT B

City of Monterey Park and USI Insurance Services LLC

SCHEDULE OF COMPENSATION

Consultant shall be compensated for services outlined in the Scope of Services (Exhibit A) solely through the payment of commissions received from insurance companies. The commission will be as follows:

Benefit Plan Type	% Commission
PPO Dental Plans	5% of premium
Prepaid Dental Plans	10% of premium
Life and AD&D Insurance Plans	10% of premium
Vision Insurance Plans	10% of premium
Employee Assistance Program	10% of premium



City Council Staff Report

DATE: December 6, 2023

AGENDA ITEM NO: Consent Calendar - 3C

TO: The Honorable Mayor and City Council
FROM: Shawn Igoe, Director of Public Works
SUBJECT: Waive Further Reading and Adopt an Ordinance Amending the Monterey Park Municipal Code ("MPMC") Regulating Permit Parking

RECOMMENDATION:

It is recommended that the City Council consider:

1. Waiving the second reading and adopting the proposed ordinance; and
2. Taking such additional, related, action that may be desirable.

EXECUTIVE SUMMARY:

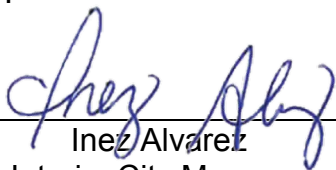
The Ordinance was introduced for first reading at the November 15, 2023 City Council meeting. The original staff report (from November 15, 2023) is attached for reference. Second reading and adoption of this Ordinance is recommended. If adopted, the Ordinance will take effect in 30 days.

Respectfully prepared & submitted by:



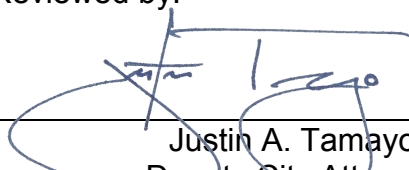
Shawn Igoe
Director of Public Works

Approved by:



Inez Alvarez
Interim City Manager

Reviewed by:



Justin A. Tamayo
Deputy City Attorney

ATTACHMENTS:

1. Ordinance
2. November 15, 2023 Staff Report (without attachments)

ATTACHMENT 1

Ordinance

ORDINANCE NO. _____

**AN AMENDING THE MONTEREY PARK MUNICIPAL CODE (“MPMC”) BY
ADDING CHAPTER 10.68 ENTITLED “PREFERENTIAL PARKING
PERMITS”**

The City Council of the City of Monterey Park does ordain as follows:

SECTION 1: *Findings*. The City Council finds and declares that:

- A. The City of Monterey Park (“City”) is a general law city, incorporated under the laws of the State of California.
- B. Pursuant to its police power, the City may enact and enforce laws within its boundaries which promote the public health, morals, safety, or general welfare of the community, and are not in conflict with general laws.
- C. California Vehicle Code § 22507.5 allows the City to prohibit or restrict the parking or standing of vehicles on certain streets or highways, or portions thereof.
- D. On November 3, 2004, the City Council adopted Resolution No. 10931 regulating the parking and standing of vehicles on certain streets and providing for preferential parking privileges.
- E. As of the date of this ordinance, there are approximately 38 preferential parking districts.
- F. The City reviewed this Resolution pursuant to the California Environmental Quality Act (Public Resources Code §§ 21000, et seq., “CEQA”) and the regulations promulgated thereunder (14 Cal. Code of Regulations §§15000, et seq., the “CEQA Guidelines”). CEQA and the CEQA Guidelines are collectively referred to as “CEQA Regulations.”
- G. On November 15, 2023, the City Council considered this Ordinance. Its findings are made based on the entire administrative record including, without limitation, the staff report submitted by the Public Works Director.

SECTION 2: A new chapter 10.68 titled “Parking Permits,” consisting of § 10.68.010-§10.68.210 is added to the MPMC to read as follows:

“CHAPTER 10.68: PARKING PERMITS

- 10.68.010. Purpose.**
- 10.68.020. Definitions.**
- 10.68.030. Application of regulations.**
- 10.68.040. Appeals.**
- 10.68.050. Parking Prohibited; Exceptions.**
- 10.68.060. Additional Prohibitions.**
- 10.68.070. Parking Permits – Application.**

- 10.68.080. Fees.**
- 10.68.090. Issuing Permits.**
- 10.68.100. Duration.**
- 10.68.110. Permit Denial.**
- 10.68.120. Permit Form.**
- 10.68.130. Display.**
- 10.68.140. Notice.**
- 10.68.150. Designation of Specified Areas.**
- 10.68.160. Designation Process.**
- 10.68.170. Dissolution Process.**
- 10.68.180. Previously Established Areas**
- 10.68.190. Designated Permit Parking Areas.**
- 10.68.190. Permits.**
- 10.68.200. Public Parking Lot Permits.**
- 10.68.210. Administrative Policies and Procedures.**

10.68.010 Purpose.

This chapter is adopted pursuant to the city's police powers and Vehicle Code § 22507, and any successor statute or regulation, in order to allow permit parking in specified areas within the city's jurisdiction.

10.68.020 Definitions.

Unless the contrary is stated or clearly appears from the context, the following definitions will govern the construction of the words and phrases used in this chapter:

"Dwelling unit" means any self-contained house, apartment, stock cooperative, or condominium occupied solely for residential purposes.

"Parking block" means for purposes of preferential parking district formation only, all residential property abutting or having frontage along one side of the right-of-way of a public street or highway between a street or highway and a railroad right-of-way, terminus or dead-end street or highway, or City boundary. An intersecting street or highway only determines the boundary of the parking block on the side of the street or highway that it intersects.

"Parking Permit Area" means any area specially designated by resolution as a residential or business parking district.

"Director of Public Works" means the City Manager, Director of Public Works, or their designees.

"Resident" means any person who lives in a dwelling unit located in a specified area.

"Specified area" means locations within the city's jurisdiction designated by city council resolution as permit parking areas.

"Visitor" means a person visiting residents living in a dwelling unit in a specified area.

10.68.030 Application of regulations.

The time limitations on standing or parking in this code will not relieve any person from the duty to observe other and more restrictive provisions of the Vehicle Code or this code prohibiting or limiting the standing or parking of vehicles in specified places or at specified times.

10.68.040 Appeals.

Every person who is issued a notice of parking violation pursuant to this chapter may request review of that notice under Vehicle Code §§ 40215, *et seq.*

10.68.050 Parking Prohibited; Exceptions.

- A. Except as otherwise provided in this section, it is unlawful for any person to park or leave standing any vehicle on any street or structure in a parking permit area.
- B. Exceptions. This section does not apply:
 - 1. To any person holding a valid vehicle parking permit issued pursuant to this chapter;
 - 2. To any person holding a valid handicap permit issued pursuant to applicable law;
 - 3. To the following vehicles, provided that the vehicle operators are actively working or on-duty:
 - a. Vehicles with exempt "E" plates;
 - b. Vehicles bearing United States government plates;
 - c. Utility company vehicles displaying warning devices;
 - d. Commercial vehicles engaged in work that requires the vehicle to be parked in a particular location;
 - e. Contractors providing service to a property located in a specified area;
 - f. Vehicles engaged in the performance of services contracted by the City; or
 - g. Any public emergency vehicle.

10.68.060 Additional Prohibitions.

- A. It is unlawful for any person to falsely represent themselves as eligible for a parking permit under this chapter or to furnish false information in an application for a parking permit.

- B. It is unlawful for any person to copy, produce, or otherwise bring into existence a facsimile or counterfeit parking permit.
- C. It is unlawful for any person to knowingly use or display a facsimile or counterfeit parking permit, with intent to evade prohibitions or limitations on parking in a specified area.

10.68.070 Parking Permits – Application.

Every person seeking a parking permit must file an application with the Director of Public Works containing the following:

- A. The name, address and phone number of the registered owner and applicant of the designated vehicle;
- B. The license number, make and model of the designated vehicle;
- C. Additional information the Director of Public Works may reasonably require; and
- D. The applicant must sign an application under penalty of perjury.

10.68.080 Fees.

Applicants for permits issued pursuant to this chapter will pay to the city a fee equal to the sum of money sufficient to reimburse the city for all expenses incurred by it in connection with processing permit applications, along with any other costs that are reasonable and necessary to ensure their effectiveness. The amount of such fees will be established periodically by City Council resolution.

Current fees are listed in the Master Schedule of Fees and Charges.

10.68.090 Issuing Permits.

- A. The Director of Public Works must issue a permit if:
 - 1. The application was completed in accordance with this chapter; and
 - 2. There are no grounds for denying the permit.
- B. Use of any permit issued pursuant to this chapter will conform to the general permit conditions of this chapter.

10.68.100 Duration.

A parking permit is valid for fiscal year, July 1st through June 30th. Upon expiration, the applicant may apply for and be granted additional parking permits if the applicant still qualifies under the conditions set forth herein.

10.68.110 Permit Denial.

A permit must be denied if the Director of Public Works finds that:

- A. The applicant is not a bona fide city resident;
- B. The proposed location is not in a specified location;
- C. Information submitted by the applicant is materially false; or
- D. The number of permits issued exceed the number allowed by this chapter.

10.68.120 Permit Form.

Permits issued pursuant to this chapter will be in a form prescribed by the City and include the permit number, the letter of the permit parking district, and the expiration date.

10.68 Display.

All permits will be hung from the rear view mirror of the vehicle to which it relates so that it is clearly visible from the exterior of the vehicle.

10.68.140 Notice.

Signs giving reasonable notice of the prohibitions contained in this section will be erected within the specified areas as required by the Vehicle Code.

10.68.150 Designation of Specified Areas.

The City Council may designate specified areas by resolution upon making the following findings:

- A. Vehicles owned or operated by persons who are not residents substantially and regularly interfere with the use of the majority of available public street or alley parking spaces in the proposed specified area by adjacent residents;
- B. Interference by such vehicles occurs in the proposed specified area at regular and significant daily or weekly intervals; and
- C. There is shortage of reasonably available and convenient residential related parking spaces within the proposed specified area.

10.68.160 Designation Process.

- A. A specified area may be requested through a petition signed by residents living in at least 66% of the dwelling units of the proposed specified area and the Director of Public Works verifies that the petition contains signatures from a sufficient number of qualified persons. Once the request has been made by the resident petition process, the Director of Public Works must undertake such surveys or studies as are deemed necessary to determine whether the area should be designated a specified area and must report his findings to the City Council.

- B. A specified area must consist of at least one parking block. In the absence of an intersective street or highway, the City Council can determine the length of a parking block, which ordinarily cannot be less than 750 feet. The City Council may, but is not required to, approve a parking block smaller than 750 feet if it can find, based upon substantive evidence provided by residents or the Director of Public Works, that: (1) a smaller parking block is desirable to protect public health and safety; and (2) that a smaller parking block will not unfairly interfere with on-street parking serving other nearby properties.
- C. Before residents may present a petition, they must notify all affected residents and provide the Director of Public Works with sufficient evidence to demonstrate that all affected residents have been notified.

10.68.170 Dissolution Process.

Proceedings to dissolve a specified area must be initiated upon receipt and verification of a petition signed by residents living in 66% of the dwelling units within the specified area or upon adoption of a resolution by the city council. A dissolution must be accomplished by city council resolution.

10.68.180 Previously Established Specified Areas.

Specified Areas established before the effective date of this chapter, as established by city council resolution, will continue in effect unless subsequently modified or dissolved in accordance with this chapter.

10.68.190 Permits.

- A. The Director of Public Works must issue permits for preferential parking and the Finance Director must collect all fees.
- B. Permit applicants must present proof that they reside in a dwelling unit in a specified area.
- C. Applicants requesting more than four permits for a dwelling unit may be granted additional permits by the Director of Public Works upon showing that there are more than four vehicles registered at the dwelling unit, and that sufficient off-street parking is not available to the applicant, and that to deny such additional permits would constitute a hardship.
- D. Parking permits issued pursuant to this chapter will remain in effect for a period of one year or fraction thereof, and may be renewed for a period of one year, as long as the permit holder continues to reside in the dwelling unit, or until the specified area for which the permit was issued is dissolved, whichever period of time is less.
- E. Residents may also receive temporary residential parking permits for use by their guests at no cost. Temporary permits will be issued to residents upon application to the Director of Public Works. A resident may obtain permits for any of the following holidays: New Year's Day, Martin Luther King, Jr. Day, Lincoln's Birthday,

President's Day, Cesar Chavez Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veteran's Day, Thanksgiving Day, Day after Thanksgiving, Christmas Eve Day, Christmas Day, and New Year's Eve Day. In addition, a resident may obtain permits for three non-holiday days per year.

- F. Use of a temporary permit may not exceed 24 hours. A maximum of 15 temporary residential parking permits may be used per day for each dwelling unit. Each such permit must have the date, street name, and name of the person approving the permit.
- G. A parking permit does not guarantee or reserve to the holder thereof an on-street parking space within the designated specified area.
- H. Each permit issued pursuant to this chapter is subject to each and every condition and restriction set forth in this chapter and as further provided by resolution establishing the specified area for which it was issued. Such a permit cannot be construed to be a permit for, or approval of, any violation of any provision of this code or any other applicable law.

10.68.200 Public Parking Lot Permits.

- A. A person may apply for a commercial permit authorizing a vehicle to remain parked in a City-owned or City-controlled parking lot during periods when the lot is designated as closed pursuant to section 10.12.020(E) of this Code. The Director of Public Works is responsible for issuing permits and the Finance Director is responsible for collecting any permit fees.
- B. Applicants must present proof that they own, or are employed by, a business located within 300 feet of the City-owned or City-controlled parking lot and that denial of parking would constitute a hardship. In deciding whether to grant or deny a permit, the Director of Public Works may consider the distance between the parking lot and the location where the applicant is employed, the degree of hardship an applicant would experience if a permit was denied, and the number of permits previously issued for the parking lot.
- C. Parking permits issued pursuant to this chapter will remain in effect for a period of one year or fraction thereof, and may be renewed for a period of one year. If an applicant wishes to renew a permit, he or she must demonstrate that the conditions which formed the basis for the decision to grant a parking permit have not substantially changed.
- D. A parking permit does not guarantee or reserve to the holder a space within the designated the City-owned or City-controlled parking lot.
- E. Each permit issued pursuant to this chapter is subject to each and every condition and restriction set forth in this chapter and as further provided by resolution establishing the specified area for which it was issued. Such a permit cannot be construed to be a permit for, or approval of, any violation of any provision of this code or any other applicable law.

10.68.210 Administrative Policies and Procedures.

The Director of Public Works is authorized to promulgate administrative policies and procedures to implement this chapter including, without limitation, posting signs on streets designated as specified areas. These rules must be submitted to and approved by the City Council.”

SECTION 3: Section 2 of Resolution No. 10931 establishing preferential parking district regulations and procedures is rescinded in its entirety.

SECTION 4: Environmental Assessment. The City reviewed the environmental impacts of the Project under the California Environmental Quality Act (Public Resources Code §§ 21000, et seq. “CEQA”) and the regulations promulgated thereunder (14 Cal. Code of Regs. §§ 15000, et seq., the “CEQA Guidelines”). CEQA Guidelines §§ 15060(c)(2), 15061(b)(3), and 15378 exempt activities that will not result in a direct or reasonably foreseeable indirect physical change in the environment, activities where there is possibility that it may have a significant effect on the environment, and activities that do not constitute a “project” as defined, respectively. This Ordinance is for general policies and procedure-making. Any request for preferential parking districts pursuant to this ordinance will be evaluated separately under the CEQA Guidelines. Accordingly, this Ordinance is exempt from further review.

SECTION 5: Construction. This Ordinance must be broadly construed in order to achieve the purposes stated in this Ordinance. It is the City Council’s intent that the provisions of this Ordinance be interpreted or implemented by the City and others in a manner that facilitates the purposes set forth in this Ordinance.

SECTION 6: Enforceability. Repeal or supersession of any provision of the BMC does not affect any penalty, forfeiture, or liability incurred before, or preclude prosecution and imposition of penalties for any violation occurring before this Ordinance’s effective date. Any such repealed or superseded part will remain in full force and effect for sustaining action or prosecuting violations occurring before the effective date of this Ordinance.

SECTION 7: Validity of Previous Code Sections. If this entire Ordinance or its application is deemed invalid by a court of competent jurisdiction, any repeal or amendment of the BMC or other ordinance by this Ordinance will be rendered void and cause such previous BMC provision or other the city ordinance to remain in full force and effect for all purposes.

SECTION 8: Severability. If any part of this Ordinance or its application is deemed invalid by a court of competent jurisdiction, the City Council intends that such invalidity will not affect the effectiveness of the remaining provisions or applications and, to this end, the provisions of this Ordinance are severable.

SECTION 9: Recording. The City Clerk, or her duly appointed deputy, is directed to certify the passage and adoption of this Ordinance; cause it to be entered into the City of Monterey Park’s book of original ordinances; make a note of the passage and adoption in the records of this meeting; and, within 15 days after the passage and adoption of this Ordinance, cause it to be published or posted in accordance with California law.

SECTION 10: Electronic Signatures. This Ordinance may be executed with electronic signatures in accordance with Government Code §16.5. Such electronic signatures will be treated in all respects as having the same effect as an original signature.

SECTION 11: Execution. The Mayor, or presiding officer, is hereby authorized to affix his signature to this Ordinance signifying its adoption by the City Council of the City of Monterey Park, and the City Clerk, or duly appointed deputy, is directed to attest.

SECTION 12: Effective Date. This Ordinance becomes effective on the 30th day following its passage and adoption.

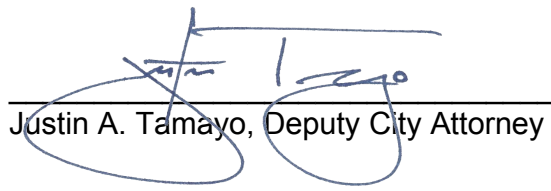
PASSED AND ADOPTED this ____ day of _____, 2023.

Jose Sanchez, Mayor

ATTEST:

Maychelle Yee, City Clerk

APPROVED AS TO FORM:
KARL H. BERGER, CITY ATTORNEY



Justin A. Tamayo, Deputy City Attorney

ATTACHMENT 2
November 15, 2023 Staff Report (without
attachments)



City Council Staff Report

DATE: November 15, 2023

AGENDA ITEM NO: New Business - 5B

TO: The Honorable Mayor and City Council
FROM: Shawn Igoe, Director of Public Works
SUBJECT: An Ordinance Amending the Monterey Park Municipal Code ("MPMC")
Regulating Permit Parking

RECOMMENDATION:

It is recommended that the City Council consider:

1. Introducing and waiving first reading of an Ordinance adding Chapter 10.68 to the Monterey Park Municipal Code ("MPMC") regulating preferential parking permit districts;
2. Scheduling a second reading and adoption for December 6, 2023; and
3. Taking such additional, related, action that may be desirable.

CEQA (California Environmental Quality Act):

The City reviewed the environmental impacts of the Project under the California Environmental Quality Act (Public Resources Code §§ 21000, et seq. "CEQA") and the regulations promulgated thereunder (14 Cal. Code of Regs. §§ 15000, et seq., the "CEQA Guidelines"). CEQA Guidelines §§ 15060(c)(2), 15061(b)(3), and 15378 exempt activities that will not result in a direct or reasonably foreseeable indirect physical change in the environment, activities where there is possibility that it may have a significant effect on the environment, and activities that do not constitute a "project" as defined, respectively. This Ordinance is for general policies and procedure-making. Any request for preferential parking districts pursuant to this ordinance will be evaluated separately under the CEQA Guidelines. Accordingly, this Ordinance is exempt from further review.

EXECUTIVE SUMMARY:

An ordinance amending the Monterey Park Municipal Code ("MPMC") by adding a new Chapter entitled "Chapter 10.68: PARKING PERMITS" to regulate, the establishment of preferential parking districts and procedures for the issuance of permits.

BACKGROUND:

In November of 2004 the City adopted a policy which provides a process for residents to petition the City to establish a permit parking area, and the criteria for considering residential parking districts. Upon recent review of the policy, it is recommended that existing procedures be superseded to review permit parking requests in a more efficient and expedited process, and codified in the MPMC.

Vehicle Code § 22507(a) (emphasis added) allows local agencies to adopt preferential parking privileges:

“Local authorities may, by ordinance or resolution, prohibit or restrict the ... parking ... of vehicles ... on certain streets or highways, or portions thereof, during all or certain hours of the day. The ordinance or resolution may include a designation of certain streets upon which preferential parking privileges are given to residents and merchants adjacent to the streets for their use and the use of their guests, under which the residents and merchants may be issued a permit or permits that exempt them from the prohibition or restriction of the ordinance or resolution.... [T]he ordinance or resolution shall not apply until signs or markings giving adequate notice thereof have been placed. A local ordinance or resolution adopted pursuant to this section may contain provisions that are reasonable and necessary to ensure the effectiveness of a preferential parking program.”

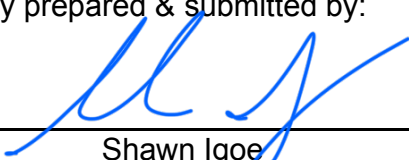
The proposed ordinance will supersede the 2004 policy, and add a new Chapter to the MPMC (Chapter 10.68) to clarify and modernize the means by which preferential parking districts may be created and the City may issue permits.

FISCAL IMPACT:

Residents living in established parking districts receive up to four free parking permits per property. The cost to replace a lost parking permit is \$30. While there is an initial fiscal impact due to costs incurred by the permit issuance, this will be offset by the revenue from violations. The cost for a restricted parking citation is currently \$60. The table below shows the number of citations issued and associated revenue for the last three fiscal years.

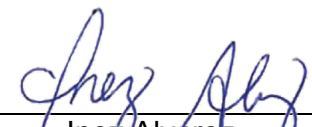
	<u>Citations</u>	<u>Revenue</u> (includes late fees)
<u>FY 2020-21</u>	<u>694</u>	<u>\$42,044</u>
<u>FY 2021-22</u>	<u>1,303</u>	<u>\$84,344</u>
<u>FY 2022-23</u>	<u>1,060</u>	<u>\$73,392</u>

Respectfully prepared & submitted by:



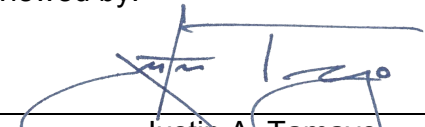
Shawn Igoe
Director of Public Works

Approved by:



Inez Alvarez
Interim City Manager

Reviewed by:



Justin A. Tamayo
Deputy City Attorney

ATTACHMENTS:

1. Ordinance
2. Resolution No. 10931
3. Existing Preferential Parking Districts



City Council Staff Report

DATE: December 6, 2023

AGENDA ITEM NO: Consent Calendar - 3D

TO: The Honorable Mayor and City Council
FROM: Shawn Igoe, Director of Public Works
SUBJECT: Receive and File Staff Report Summarizing the Status of Emergency Repairs of the Monterey Pass Road Water Line

RECOMMENDATION:

It is recommended that the City Council consider:

1. Receiving and Filing the staff report summarizing the status of emergency repairs of the Monterey Pass Road water line; and
2. Taking such additional, related, action that may be desirable.

BACKGROUND:

On August 17, 2022, City Council adopted Resolution No. 2022-R69 authorizing the City Manager to take necessary measures for emergency repair of a water main line on Monterey Pass Road. Recurring water main leaks in several areas within Monterey Pass Road between the intersections of Vagabond Drive and Brightwood Street resulted in extensive infrastructure damage to the roadway and necessary water main pipe repairs to ensure continued water service to residences and businesses in the area.

The design phase was completed in December 2022 followed by research of available material and cost during the months of December and January to ensure the project could be expedited due to the significant material delivery delays. Construction started in March 2023 and is scheduled to be complete by December 2023.

The contractor has completed the installation of the 12-inch pipeline for the entire project from Floral Drive to Vagabond Road for a total length of 10,800 linear feet of pipeline. This is the backbone of the water distribution system along Monterey Pass Road. The contractor also completed the installation of all interconnecting pipes including the connection at Vagabond Road. The contractor has installed all the lateral pipelines for the water services, fire services, and fire hydrants for the project. The contractor has also completed hydrostatic pressure testing of the pipeline. The current overall project is approximately 92% complete.

Traffic control devices have provided a safe working condition for both contractor and the driving public. These devices are removed at the end of the day and proper temporary asphalt resurfacing of the trench has provided a seamless transition for vehicular traffic. Street sweeping is performed on a daily basis to provide a clean working environment

Staff Report

Page 2 of 2

December 6, 2023

during and after work. A map showing construction work through November 3rd is included as Attachment 1.

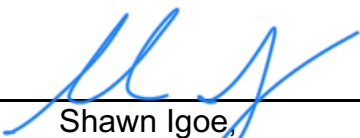
FISCAL IMPACT:

The Monterey Pass Road Emergency Water Main Improvements project is included in the FY 23-24 Capital Improvement Plan as Project No. 99025. The following is an estimated cost for the project:

<u>CIP 99025 – Monterey Pass Road Emergency Water Main</u>	
Engineering Design	\$ 131,000
Geotechnical	\$ 100,000
Construction Cost	\$ 4,800,000
Material Cost	\$ 1,600,000
Street Rehabilitation	\$ 950,000
Construction Management and Inspection	\$ 460,367
Total	\$8,041,367

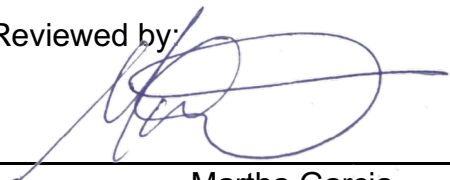
The City applied for funding from CalTrans Federal Transportation Improvement Program (FTIP) to pay for the street rehabilitation improvements along the Monterey Pass Road project area. The City anticipates receiving \$1,064,323 in FTIP funding for this project early next year.

Respectfully submitted by:



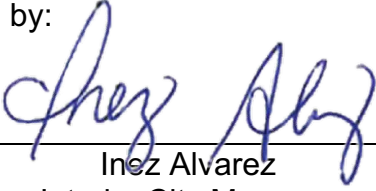
Shawn Igoe,
Director of Public Works

Reviewed by:



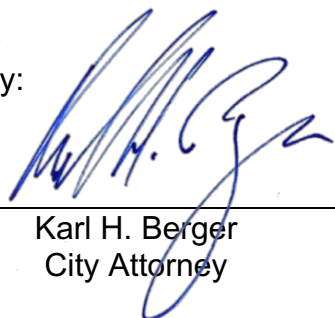
Martha Garcia
Director of Finance

Approved by:



Inez Alvarez
Interim City Manager

Reviewed by:



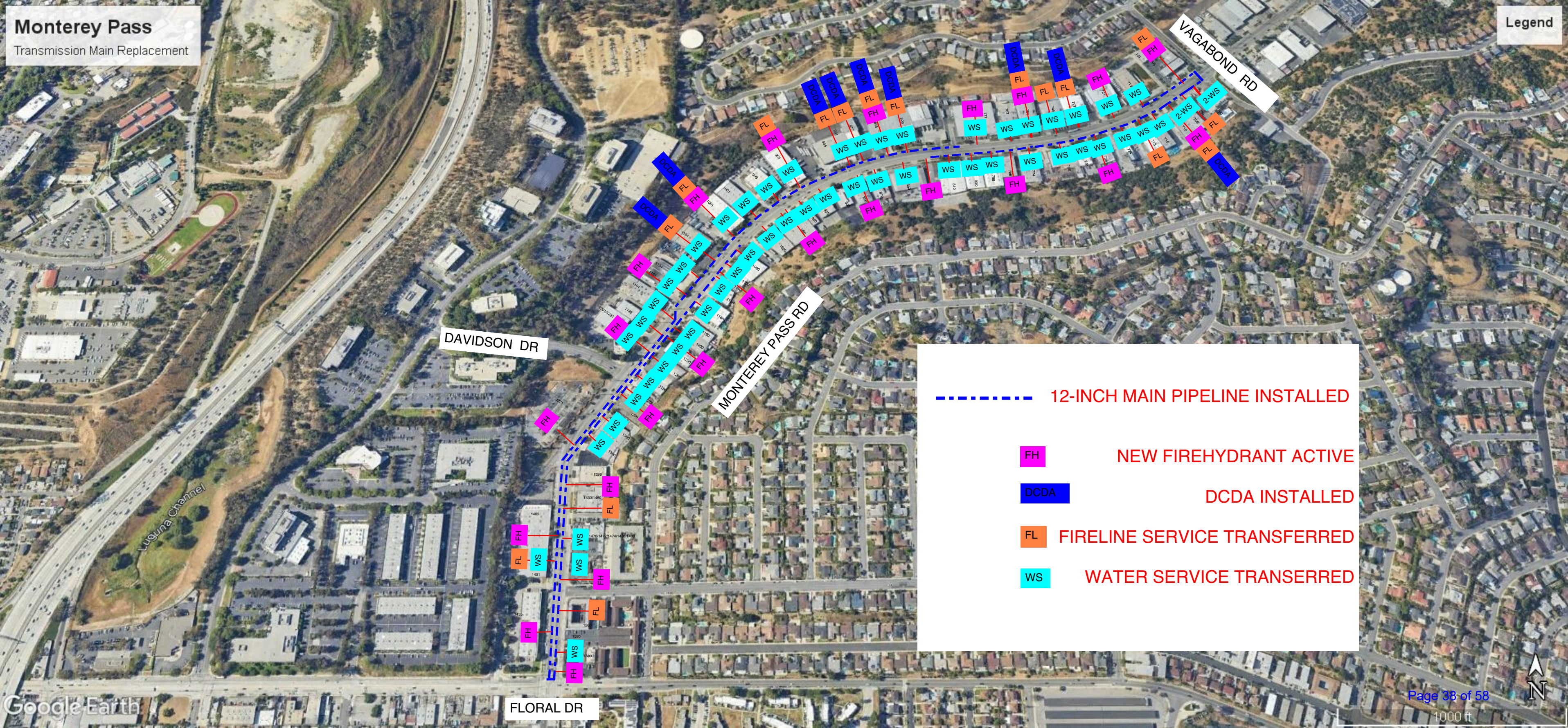
Karl H. Berger
City Attorney

ATTACHMENT:

1. Construction Map

ATTACHMENT 1

Construction Map



----- 12-INCH MAIN PIPELINE INSTALLED

FH NEW FIREHYDRANT ACTIVE

DCDA DCDA INSTALLED

FL FIRELINE SERVICE TRANSFERRED

WS WATER SERVICE TRANSERRED





City Council Staff Report

DATE: December 6, 2023

AGENDA ITEM NO: Public Hearing - 4A

TO: The Honorable Mayor and City Council
FROM: Martha Garcia, Director of Finance
SUBJECT: Consideration and Possible Action to adopt ordinances establishing Water and Wastewater (Sewer) Rates

RECOMMENDATION:

It is recommended that the City Council consider:

1. Opening the public hearing;
2. Receiving all written and verbal testimony regarding the proposed rate increases;
3. Determining whether there is a majority protest against the proposed rate increases;
4. If no majority protest exists, that the City Council introduce and waive first reading of Ordinance No. _____ – Setting the amount of Water Rates and Charges (Attachment 1);
5. If no majority protest exists, that the City Council introduce and waive first reading of Ordinance No. _____ – Setting the amount of Wastewater (Sewer) Rates and Charges (Attachment 2); and
6. Take such additional, related, action that may be desirable.

EXECUTIVE SUMMARY:

On July 16, 2014, the City Council adopted Ordinance Nos. 2109 and 2110 adjusting the rates for water and sewer, respectively. These Ordinances included a 10% to 15% increase in rates for a five-year period beginning September 2014. The Ordinances also included an automatic reversal of utility rate charges effective August 2019 back to utility charges existing in August of 2017. Since that time, several factors have changed: declines in water usage resulting from increased efficiency and an increase in operating costs due to inflation. A new comprehensive rate study was desirable.

On June 16, 2021, the Council authorized the City Manager to execute an agreement with HF&H Consultants, LLC (HF&H) for a Utility Rate Fees Study (the Study). The last comprehensive study on the water, wastewater, and refuse rates occurred in 2014.

HF&H has worked with City staff to develop comprehensive rate analyses for the water and wastewater (sewer) enterprises with recommendations that ensure the rates charged are fair and equitable to the City's users and can adequately fund the City's operations of these services.

BACKGROUND:

Proposition 218 Process

Pursuant to Article XIII D, Section 6 of the California Constitution (added by voters via Proposition 218), before imposing new or increasing existing property-related rates for water, wastewater, or solid waste, the City must provide notice by mail of a public hearing for considering such rates. The notice must be provided at least 45 days before the date of the public hearing on the proposed fees.

In 2014, the City Council adopted Resolution No. 11647 establishing procedures for increasing maximum rates for property-related fees in accordance with the requirements of Proposition 218. These procedures require the City Council to approve the Proposition 218 Notice, which contains the proposed monthly rates for residential and commercial water and wastewater services; and the date upon which the rates would become effective if approved. On October 4, 2023, City Council approved the Proposition 218 Notice for the proposed water and sewer rates.

On October 16, 2023, the Proposition 218 Notices were mailed via United States Postal Services to the address of each parcel number in Monterey Park as well as to the owner's address of each parcel in Monterey Park and tenants residing in Monterey Park. The Proposition 218 Notices provided notice of the December 6, 2023, public hearing date; included proposed rates; disclosed that if the proposed rates are approved, they will take effect on January 1, 2024; and contained the official ballot for property owners or authorized representatives wishing to protest the proposed Rates. Notices were mailed out in English, Spanish, and Chinese.

In addition to mailing Proposition 218 notices, a Public Notice was published in the Monterey Park Press on November 13, 2023. Note that, notwithstanding the notices, rates would not become effective until 30 days after the proposed ordinances were adopted. Assuming an adoption date of December 20, 2023, the effective date of the rates would be January 19, 2024; the new rates would be present in invoices sent February 1, 2024.

Out of the 17,492 parcels in Monterey Park 8,747 valid protests are needed to stop the rate increase by the voters. At the time of writing this staff report, the City Clerk's office received fewer than 700 documents regarding this item. Based upon this response, it is recommended that the City Council find that fewer than 8,747 protests were submitted without the need for further validation by the City Clerk.

Section 8(C)(6) of Resolution No. 11647 requires that water and wastewater rates be adopted by ordinance (pursuant to Health and Safety Code § 5471). Accordingly, it is recommended that the City Council introduce and waive first reading of the ordinances setting the amount of water, and wastewater rates. Second reading and adoption would occur on December 20, 2023; Health and Safety Code § 5471 requires a 2/3 majority (i.e., 4 out of 5) vote to adopt the ordinances.

Proposed Water Rates

Monterey Park's current water rates are those in effect for August 2017. Customers are charged a monthly water meter charge based on meter size and a water consumption charge based on actual water usage. Single family residential customers have a three-tier structure and all other customer classes pay a uniform charge. Additionally, all customers pay a 37.5% treatment surcharge that is applied to both the meter charge and consumption charge. This rate structure generates approximately 34% of the Water Enterprise's revenue from the monthly meter charge. HF&H developed a 10-year financial plan for the Water Enterprise, performed a cost-of-service analysis, and designed rates in compliance with Proposition 218.

The financial analysis made the following findings:

- The revenue generated from current rates are inadequate to pay for current and ongoing operations of the water system.
- Operating costs will increase approximately 3.0% each year.
- Capital costs average \$6.2 million per year through FY 2027-28.
- The Water Enterprise pays approximately \$916,967 per year in annual debt service.
- The Water Enterprise has borrowed \$4 million from San Gabriel Valley Water at 0% interest for a ten-year payment term.
- Annual revenue needs to increase to pay for ongoing operations, an aggressive capital program, and additional debt service.

The cost-of-service and rate design analysis support adjusting the water rate structure as follows:

- Residential tier breakpoints should be adjusted with actual customer demand patterns.
- Monthly meter charge should be adjusted to align with the rated capacities of each meter size using recommendations from the American Water Works Association.
- The 37.5% treatment surcharge should be absorbed by the monthly meter charge and consumption charges.
- Financing \$20 million in projects allows rate increases to be set at 26%, 8%, 8%, 7%, 7% instead of the proposed higher rate increases of 32%, 8%, 8%, 7%, 8%
- Approximately 23% of the Water Enterprise's revenue should be generated from the fixed monthly meter charge to maintain revenue stability.

The proposed revenue increases affect each customer and customer class differently. For example, the single-family residential consumption tier 3 rate is increasing due to costs being allocated to customers that cause the system-wide peak use. High water use residential customers will have their bills increase disproportionately to low and average residential customers.

Current and proposed water rates assuming a \$20 million water bond

Monthly Service Charges						
Meter Size	FY 2022-23 Current Rates	FY 2023-24 1/1/2024	FY 2024-25 7/1/2024	FY 2025-26 7/1/2025	FY 2026-27 7/1/2026	FY 2027-28 7/1/2027
5/8" meters	\$26.40	\$19.18	\$20.71	\$22.37	\$23.93	\$25.61
3/4" meters	\$26.40	\$25.88	\$27.95	\$30.18	\$32.30	\$34.56
1" meters	\$28.53	\$39.28	\$42.43	\$45.82	\$49.03	\$52.46
1 1/2" meters	\$44.96	\$72.79	\$78.62	\$84.91	\$90.85	\$97.21
2" meters	\$57.96	\$113.01	\$122.05	\$131.81	\$141.04	\$150.91
3" meters	\$115.98	\$220.24	\$237.86	\$256.89	\$274.87	\$294.11
4" meters	\$191.88	\$340.88	\$368.15	\$397.60	\$425.44	\$455.22
6" meters	\$585.68	\$675.99	\$730.07	\$788.47	\$843.67	\$902.72
8" meters	\$1,464.79	\$1,078.12	\$1,164.37	\$1,257.52	\$1,345.54	\$1,439.73

Water Consumption Charge (per unit)							
Monthly Use	FY 2022-23 Current Rates	Monthly Use	FY 2023-24 1/1/2024	FY 2024-25 7/1/2024	FY 2025-26 7/1/2025	FY 2026-27 7/1/2026	FY 2027-28 7/1/2027
Single Family Residential							
Tier 1 (0-6 hcf)	\$2.89	Tier 1 (0 - 10 hcf)	\$3.12	\$3.37	\$3.64	\$3.90	\$4.17
Tier 2 (7-12 hcf)	\$3.15	Tier 2 (11 - 16 hcf)	\$4.12	\$4.45	\$4.81	\$5.14	\$5.50
Tier 3 (13+ hcf)	\$3.37	Tier 3 (17+ hcf)	\$7.80	\$8.42	\$9.09	\$9.73	\$10.41
All Other							
All Consumption	\$3.29	All Consumption	\$3.89	\$4.20	\$4.54	\$4.85	\$5.19

Proposed Wastewater (Sewer) Rates

Monterey Park's current wastewater rates are those in effect for August 2017. Customers are charged a monthly sewer meter charge based on water meter size customer class. HF&H developed a 10-year financial plan for the Sewer Enterprise, performed a cost-of-service analysis, and designed rates in compliance with Proposition 218.

The financial analysis made the following findings:

- The revenue generated from current rates are inadequate to pay for current and ongoing operations of the sewer system.
- Operating costs will increase approximately 3.4% each year.
- Capital costs average \$3.2 million per year through FY 2027-28.

- The Sewer Enterprise does not have any current debt, nor does the recommendation include debt financing any of the future capital program costs.
- Annual revenue needs to increase to pay for ongoing operations and an aggressive capital program.

The cost-of-service and rate design analysis support adjusting the sewer rate structure as follows:

- All single-family residential accounts should pay the same rate regardless of water meter size. Water meter size is not always indicative of increased indoor water use (i.e., sewer water) due to outdoor irrigation or fire flow needs on each property.
- Multi-family residential customers should also pay on a per dwelling unit basis rather than by water meter size.
- Commercial and Institutional customers should pay the same rates based on meter size that are realigned with the rated capacities of each meter size using recommendations from the American Water Works Association.

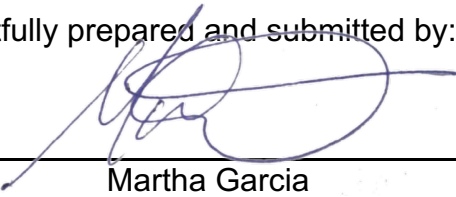
Current and Proposed Monthly Sewer Rates

Monthly Sewer Rates								
Customer Class	Current	Current	Proposed	Proposed				
	Units	FY 2022-23	Units	FY 2023-24	FY 2024-25	FY 2025-26	FY 2026-27	FY 2027-28
Single Family			<i>effective date</i>	1/1/2024	7/1/2024	7/1/2025	7/1/2026	7/1/2027
5/8", 3/4"	account	\$10.17	per account/DU	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1"	account	\$12.42	per account/DU	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1 1/2"	account	\$12.86	per account/DU	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
Multi Family								
3/4"	account	\$29.01	per dwelling unit	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1"	account	\$34.76	per dwelling unit	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1 1/4"	account	\$57.25	per dwelling unit	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1 1/2"	account	\$84.15	per dwelling unit	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
2"	account	\$161.22	per dwelling unit	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
3"	account	\$413.02	per dwelling unit	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
4"	account	\$534.30	per dwelling unit	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
Commercial								
3/4"	account	\$27.09	account	\$27.37	\$35.58	\$39.14	\$43.05	\$44.78
1"	account	\$40.68	account	\$45.61	\$59.30	\$65.23	\$71.75	\$74.62
1 1/4"	account	\$40.68	account	\$91.22	\$118.59	\$130.45	\$143.50	\$149.24
1 1/2"	account	\$78.41	account	\$145.95	\$189.74	\$208.71	\$229.58	\$238.76
2"	account	\$198.97	account	\$291.91	\$379.49	\$417.44	\$459.18	\$477.55
3"	account	\$270.68	account	\$456.11	\$592.94	\$652.23	\$717.45	\$746.15
4"	account	\$386.69	account	\$912.21	\$1,185.88	\$1,304.46	\$1,434.91	\$1,492.31
6"	account	\$1,052.20	account	\$1,459.54	\$1,897.40	\$2,087.15	\$2,295.86	\$2,387.69
Institutional								
3/4"	account	\$46.29	account	\$27.37	\$35.58	\$39.14	\$43.05	\$44.78
2"	account	\$68.48	account	\$291.91	\$379.49	\$417.44	\$459.18	\$477.55
3"	account	\$73.29	account	\$456.11	\$592.94	\$652.23	\$717.45	\$746.15
4"	account	\$168.28	account	\$912.21	\$1,185.88	\$1,304.46	\$1,434.91	\$1,492.31

FISCAL IMPACT:

Within the water fund, the proposed rate increase will generate approximately \$30.1 million in additional water rate revenue over the five-year planning period. The proposed wastewater (sewer) rate increases will generate approximately \$14.5 million in additional rate revenue over the five-year planning period. These additional revenues provide adequate funds to support increased water and sewer operating and capital expenses.

Respectfully prepared and submitted by:



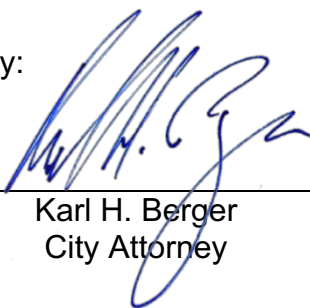
Martha Garcia
Director of Finance

Approved by:



Inez Alvarez
City Manager

Reviewed by:



Karl H. Berger
City Attorney

ATTACHMENT:

1. Ordinance – Water rates
2. Ordinance – Sewer rates

ATTACHMENT 1

Ordinance-Water rates

ORDINANCE NO.

AN ORDINANCE SETTING THE AMOUNT OF WATER RATES AND CHARGES PURSUANT TO HEALTH AND SAFETY CODE § 5471 AND MONTEREY PARK MUNICIPAL CODE CHAPTER 14.12.

The City Council does ordain as follows:

SECTION 1: The City Council finds and declares as follows:

- A. The City of Monterey Park requires a reliable supply of water meeting current and anticipated water quality standards to protect the public general welfare, health and safety;
- B. The purpose of water rates and charges is to protect the public health, safety and general welfare by providing a reliable and adequate supply of water meeting current and anticipated water quality standards for the residents of the City of Monterey Park and to pay for the cost of providing such service;
- C. There is a reasonable relationship between the amount of the rates and charges and the cost of services and facilities necessary to deliver water service to the residents and non-residential development of the City;
- D. Notice regarding the water rates included in this ordinance was provided in accordance with California Constitution Article XIID, § 6(c) and Government Code § 54354.5;
- E. On December 6, 2023, the City Council held a public hearing to consider the results of the protest proceeding and to consider whether to increase the water rates as proposed;
- F. This Ordinance is exempt from review under the California Environmental Quality Act (Cal. Pub. Res. Code §§ 21000, *et seq.*; "CEQA") and CEQA regulations (14 Cal. Code Regs. §§ 15000, *et seq.*; "CEQA Guidelines") because it establishes, modifies, structures, restructures, and approves rates and charges for meeting operating expenses; purchasing supplies, equipment, and materials; meeting financial requirements; and obtaining funds for capital projects needed to maintain service within existing service areas. This Ordinance, therefore, is categorically exempt from further CEQA review under CEQA Guidelines § 15273;
- G. This ordinance is adopted in accordance with Health and Safety Code § 5471 and Monterey Park Municipal Code ("MPMC") Chapter 14.12 to establish the City's current water rates;
- H. The City Council has considered the evidence and testimony presented at the public hearing. Based in part upon that evidence, and the staff reports presented to the Council regarding this issue, the City Council believes that it

is in the public interest to adopt this Ordinance;

SECTION 2: AMOUNT OF RATES AND CHARGES.

- A. Pursuant to MPMC Chapter 14.12, the City Council establishes the amount of water rates as set forth in attached Exhibit "A," which is incorporated by reference ("Water Charges").
- B. The Water Charges include an annual increase of 26%, 8%, 8%, 7%, 7% beginning January 1, 2024 through fiscal year 2027-28.

SECTION 3: COST ESTIMATES. The City Manager, or designee, will periodically, but not less than annually, review the Water Charges to determine whether revenues from such charges are meeting actual cost of services and facilities needed to deliver water service to the residents and non-residential developments within the City. If the City Manager determines that revenues do not adequately meet costs, the City Manager will recommend to the City Council a revised rate and charge schedule to be adopted by this City Council by ordinance:

SECTION 4: This Ordinance was adopted to comply with the California Supreme Court decision in *Bighorn-Desert View Water Agency v. Verjil* (2006) 39 Cal.4th 205. To the extent any provision of this Ordinance repeals or supersedes Ordinance No. 2109, such repeal or replacement will not affect any penalty, forfeiture, or liability incurred before, or preclude prosecution and imposition of penalties for any violation occurring before, this Ordinance's effective date. Any such repealed or superseded part of Ordinance No. 2109 will remain in full force and effect for sustaining action or prosecuting violations occurring before the effective date of this Ordinance

SECTION 5: If any part of this Ordinance or its application is deemed invalid by a court of competent jurisdiction, the City Council intends that such invalidity will not affect the effectiveness of the remaining provisions or applications and, to this end, the provisions of this Ordinance are severable.

SECTION 6: The City Clerk is directed to certify the passage and adoption of this Ordinance; cause it to be entered into the City of Monterey Park's book of original ordinances; make a note of the passage and adoption in the records of this meeting; and, within fifteen (15) days after the passage and adoption of this Ordinance, cause it to be published or posted in accordance with California law:

SECTION 7: *Electronic Signatures.* This Resolution may be executed with electronic signatures in accordance with Government Code §16.5. Such electronic signatures will be treated in all respects as having the same effect as an original signature.

SECTION 8: *Severability.* If any part of this Resolution or its application is deemed invalid by a court of competent jurisdiction, the City Council intends that such invalidity will not affect the effectiveness of the remaining provision or application and, to this end, the provisions of this Resolution are severable.

SECTION 9: *Recordation.* The Mayor, or presiding officer, is authorized to sign this Resolution signifying its adoption by the City Council of the City of Monterey Park and the City Clerk, or her duly appointed deputy, may attest thereto.

SECTION 10: *Effective Date.* This Ordinance will become effective immediately upon adoption and will remain effective unless repealed or superseded.

**PASSED, APPROVED, AND ADOPTED BY THE CITY COUNCIL OF THE
CITY OF MONTEREY PARK THIS 06th DAY OF DECEMBER 2023.**

Jose Sanchez, Mayor

ATTEST:

Maychelle Yee, City Clerk

APPROVED AS TO FORM:



Karl H. Berger, City Attorney

I, Maychelle Yee, City Clerk of the City of Monterey Park, California, hereby certify that the foregoing resolution was duly and regularly introduced and adopted at a meeting of the City Council of said City at its meeting held on the 15th day of November, 2023, by the following vote, to wit:

Ayes:

Noes:

Absent:

Abstain:

IN WITNESS WHEREOF, this __th day of _____, 2023.

City Clerk of the City of Monterey Park

Exhibit A- Current and Proposed Water Rates

Water Consumption Charge (per unit)							
FY 2022-23		FY 2023-24 FY 2024-25 FY 2025-26 FY 2026-27 FY 2027-28					
Monthly Use	Current Rates	Monthly Use	1/1/2024	7/1/2024	7/1/2025	7/1/2026	7/1/2027
Single Family Residential							
Tier 1 (0-6 hcf)	\$2.89	Tier 1 (0 - 10 hcf)	\$3.12	\$3.37	\$3.64	\$3.90	\$4.17
Tier 2 (7-12 hcf)	\$3.15	Tier 2 (11 - 16 hcf)	\$4.12	\$4.45	\$4.81	\$5.14	\$5.50
Tier 3 (13+ hcf)	\$3.37	Tier 3 (17+ hcf)	\$7.80	\$8.42	\$9.09	\$9.73	\$10.41
All Other							
All Consumption	\$3.29	All Consumption	\$3.89	\$4.20	\$4.54	\$4.85	\$5.19

Monthly Service Charges						
FY 2022-23		FY 2023-24	FY 2024-25	FY 2025-26	FY 2026-27	FY 2027-28
Meter Size	Current Rates	1/1/2024	7/1/2024	7/1/2025	7/1/2026	7/1/2027
5/8" meters	\$26.40	\$19.18	\$20.71	\$22.37	\$23.93	\$25.61
3/4" meters	\$26.40	\$25.88	\$27.95	\$30.18	\$32.30	\$34.56
1" meters	\$28.53	\$39.28	\$42.43	\$45.82	\$49.03	\$52.46
1 1/2" meters	\$44.96	\$72.79	\$78.62	\$84.91	\$90.85	\$97.21
2" meters	\$57.96	\$113.01	\$122.05	\$131.81	\$141.04	\$150.91
3" meters	\$115.98	\$220.24	\$237.86	\$256.89	\$274.87	\$294.11
4" meters	\$191.88	\$340.88	\$368.15	\$397.60	\$425.44	\$455.22
6" meters	\$585.68	\$675.99	\$730.07	\$788.47	\$843.67	\$902.72
8" meters	\$1,464.79	\$1,078.12	\$1,164.37	\$1,257.52	\$1,345.54	\$1,439.73

ATTACHMENT 2

Ordinance-Sewer rates

ORDINANCE NO.

AN ORDINANCE SETTING THE AMOUNT OF WASTEWATER RATES AND CHARGES PURSUANT TO HEALTH AND SAFETY CODE § 5471 AND MONTEREY PARK MUNICIPAL CODE CHAPTER 14.12.

The City Council does ordain as follows:

SECTION 1: The City Council finds and declares as follows:

- A. The City of Monterey Park requires a reliable wastewater discharge system meeting current and anticipated water quality standards to protect the public general welfare, health and safety;
- B. The purpose of wastewater rates and charges is to protect the public health, safety and general welfare by providing a reliable and safe wastewater discharge system that meets current and anticipated wastewater quality standards for the residents of the City of Monterey Park and to pay for the cost of providing such service;
- C. Based upon the record, there is a reasonable relationship between the amount of the rates and charges and the cost of services and facilities necessary to deliver wastewater service to the residents and nonresidential development of the City;
- D. Notice regarding the wastewater rates included in this ordinance was provided in accordance with California Constitution Article XIID, § 6(c) and Government Code § 54354.5;
- E. On December 6, 2023, the City Council held a public hearing to consider the results of the protest proceeding and to consider whether to increase the water rates as proposed;
- F. This Ordinance is exempt from review under the California Environmental Quality Act (Cal. Pub. Res. Code §§ 21000, *et seq.*; "CEQA") and CEQA regulations (14 Cal. Code Regs. §§ 15000, *et seq.*; "CEQA Guidelines") because it establishes, modifies, structures, restructures, and approves rates and charges for meeting operating expenses; purchasing supplies, equipment, and materials; meeting financial requirements; and obtaining funds for capital projects needed to maintain service within existing service areas. This Ordinance, therefore, is categorically exempt from further CEQA review under CEQA Guidelines § 15273;
- G. This ordinance is adopted in accordance with Health and Safety Code § 5471 to establish the City's current wastewater rates and charges;
- H. The City Council has considered the evidence and testimony presented at the public hearing. Based in part upon that evidence, and the agenda reports

presented to the Council regarding this issue, the City Council believes that it is in the public interest to adopt this Ordinance.

SECTION 2: AMOUNT OF RATES AND CHARGES.

- A. The City Council establishes amount of wastewater rates as set forth in attached Exhibit "A," which is incorporated by reference ("Wastewater Charges.").
- B. The Wastewater Charges include an annual increase of 40%, 30%, 10%, 10%, 4% beginning January 1, 2024 through fiscal year 2027-28.

SECTION 3: COST ESTIMATES. The City Manager, or designee, will periodically, but not less than annually, review the Wastewater Charges to determine whether revenues from such charges are meeting actual cost of services and facilities needed to deliver water service to the residents and non-residential developments within the City. If the City Manager determines that revenues do not adequately meet costs, the City Manager will recommend to the City Council a revised rate and charge schedule to be adopted by this City Council by ordinance:

SECTION 4: This Ordinance was adopted to comply with the California Supreme Court decision in *Bighorn-Desert View Water Agency v. Verjil* (2006) 39 Cal.4th 205. To the extent any provision of this Ordinance repeals or supersedes any previous approvals, such repeal or replacement will not affect any penalty, forfeiture, or liability incurred before, or preclude prosecution and imposition of penalties for any violation occurring before, this Ordinance's effective date. Any such repealed or superseded part of previous approvals will remain in full force and effect for sustaining action or prosecuting violations occurring before the effective date of this Ordinance.

SECTION 5: If any part of this Ordinance or its application is deemed invalid by a court of competent jurisdiction, the City Council intends that such invalidity will not affect the effectiveness of the remaining provisions or applications and, to this end, the provisions of this Ordinance are severable.

SECTION 6: The City Clerk is directed to certify the passage and adoption of this Ordinance; cause it to be entered into the City of Monterey Park's book of original ordinances; make a note of the passage and adoption in the records of this meeting; and, within fifteen (15) days after the passage and adoption of this Ordinance, cause it to be published or posted in accordance with California law.

SECTION 7: *Electronic Signatures.* This Resolution may be executed with electronic signatures in accordance with Government Code §16.5. Such electronic signatures will be treated in all respects as having the same effect as an original signature.

SECTION 8: *Severability.* If any part of this Resolution or its application is deemed invalid by a court of competent jurisdiction, the City Council intends that such invalidity will not affect the effectiveness of the remaining provision or application and, to this end, the provisions of this Resolution are severable.

SECTION 9: *Recordation.* The Mayor, or presiding officer, is authorized to sign this Resolution signifying its adoption by the City Council of the City of Monterey Park and the City Clerk, or her duly appointed deputy, may attest thereto.

SECTION 10: *Effective Date.* This Resolution will become effective immediately upon adoption and will remain effective unless repealed or superseded.

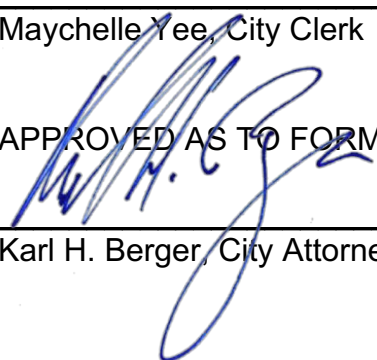
**PASSED, APPROVED, AND ADOPTED BY THE CITY COUNCIL OF THE
CITY OF MONTEREY PARK THIS 06th DAY OF DECEMBER 2023.**

Jose Sanchez, Mayor

ATTEST:

Maychelle Yee, City Clerk

APPROVED AS TO FORM:



Karl H. Berger, City Attorney

I, Maychelle Yee, City Clerk of the City of Monterey Park, California, hereby certify that the foregoing resolution was duly and regularly introduced and adopted at a meeting of the City Council of said City at its meeting held on the 15th day of November, 2023, by the following vote, to wit:

Ayes:

Noes:

Absent:

Abstain:

IN WITNESS WHEREOF, this __th day of _____, 2023.

City Clerk of the City of Monterey Park

Exhibit A- Current and Proposed Sewer Rates

Monthly Sewer Rates								
Customer Class	Current	Current	Proposed	Proposed				
	Units	FY 2022-23	Units	FY 2023-24	FY 2024-25	FY 2025-26	FY 2026-27	FY 2027-28
Single Family			<i>effective date</i>	<i>1/1/2024</i>	<i>7/1/2024</i>	<i>7/1/2025</i>	<i>7/1/2026</i>	<i>7/1/2027</i>
5/8", 3/4"	<i>account</i>	\$10.17	<i>per account/DU</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1"	<i>account</i>	\$12.42	<i>per account/DU</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1 1/2"	<i>account</i>	\$12.86	<i>per account/DU</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
Multi Family								
3/4"	<i>account</i>	\$29.01	<i>per dwelling unit</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1"	<i>account</i>	\$34.76	<i>per dwelling unit</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1 1/4"	<i>account</i>	\$57.25	<i>per dwelling unit</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
1 1/2"	<i>account</i>	\$84.15	<i>per dwelling unit</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
2"	<i>account</i>	\$161.22	<i>per dwelling unit</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
3"	<i>account</i>	\$413.02	<i>per dwelling unit</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
4"	<i>account</i>	\$534.30	<i>per dwelling unit</i>	\$15.71	\$20.42	\$22.46	\$24.71	\$25.70
Commercial								
3/4"	<i>account</i>	\$27.09	<i>account</i>	\$27.37	\$35.58	\$39.14	\$43.05	\$44.78
1"	<i>account</i>	\$40.68	<i>account</i>	\$45.61	\$59.30	\$65.23	\$71.75	\$74.62
1 1/4"	<i>account</i>	\$40.68	<i>account</i>	\$91.22	\$118.59	\$130.45	\$143.50	\$149.24
1 1/2"	<i>account</i>	\$78.41	<i>account</i>	\$145.95	\$189.74	\$208.71	\$229.58	\$238.76
2"	<i>account</i>	\$198.97	<i>account</i>	\$291.91	\$379.49	\$417.44	\$459.18	\$477.55
3"	<i>account</i>	\$270.68	<i>account</i>	\$456.11	\$592.94	\$652.23	\$717.45	\$746.15
4"	<i>account</i>	\$386.69	<i>account</i>	\$912.21	\$1,185.88	\$1,304.46	\$1,434.91	\$1,492.31
6"	<i>account</i>	\$1,052.20	<i>account</i>	\$1,459.54	\$1,897.40	\$2,087.15	\$2,295.86	\$2,387.69
Institutional								
3/4"	<i>account</i>	\$46.29	<i>account</i>	\$27.37	\$35.58	\$39.14	\$43.05	\$44.78
2"	<i>account</i>	\$68.48	<i>account</i>	\$291.91	\$379.49	\$417.44	\$459.18	\$477.55
3"	<i>account</i>	\$73.29	<i>account</i>	\$456.11	\$592.94	\$652.23	\$717.45	\$746.15
4"	<i>account</i>	\$168.28	<i>account</i>	\$912.21	\$1,185.88	\$1,304.46	\$1,434.91	\$1,492.31

RESOLUTION NO.

**A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MONTEREY PARK,
CALIFORNIA, DECLARING THE MONTH OF DECEMBER 2023 AS HUMAN
RIGHTS MONTH IN COMMEMORATION OF THE 75TH ANNIVERSARY OF THE
UNITED NATION'S UNIVERSAL DECLARATION OF HUMAN RIGHTS**

BE IT RESOLVED by the Council of the City of Monterey Park as follows:

SECTION 1: The City Council finds as follows:

- A. The Universal Declaration of Human Rights (UDHR) is a milestone document in the history of human rights. The Declaration was adopted by the United Nations General Assembly in Paris on December 10, 1948, during its 183rd plenary meeting.
- B. In 2023, we commemorate the 75th anniversary of the Universal Declaration of Human Rights, which coincides with the 30th anniversary of the Office of the High Commissioner for Human Rights.
- C. For 75 years, the core ambition of the Declaration has been to infuse societies with equality, fundamental freedoms, and justice. It enshrines the rights of all human beings and is a global blueprint for international, national, and local laws and policies.
- D. On Human Rights Day, December 10, 2023, we will celebrate the 75th anniversary of the Declaration, a milestone celebration. Human Rights Day will capture all the moments from this year's commemoration and seeks to increase knowledge on the universality and indivisibility of human rights, especially among young people. It will inspire people to create a movement of shared humanity while empowering them to fight for their rights and act.
- E. The UDHR gives us tools and the roadmap to unite and speed up the fight for our rights. We celebrate the 75th anniversary of the UDHR with the theme Stand up for Dignity, Freedom, and Justice for All.
- F. The primary responsibility to promote respect for these rights and freedoms lies with each individual in the City of Monterey Park, and each of us can play a significant role in enhancing human rights.
- G. The City Council of the City of Monterey Park, in recognition of Human Rights Day on December 10, 2023, joins national and local officials in proclaiming December 2023 as Human Rights Month and encourages citizens in our community to observe this month by celebrating thoughtful measures and laws undertaken to secure effective recognition and observance of these rights and freedoms, and by each person exercising his rights and freedom.

SECTION 2: *Electronic Signatures*. This Resolution may be executed with electronic signatures in accordance with Government Code §16.5. Such electronic signatures will be treated in all respects as having the same effect as an original signature.

SECTION 3: *Recordation*. The Mayor, or presiding officer, is authorized to sign this Resolution, signifying its adoption by the City Council of the City of Monterey Park, and the City Clerk, or her duly appointed deputy, may attest thereto.

SECTION 4: *Effective Date*. This Resolution will become effective immediately upon adoption and will remain effective unless repealed or superseded.

(Mayor signature and attestation must be on the same page.)

PASSED AND ADOPTED this ____ day of _____, 2023.

Jose Sanchez, Mayor

Attest:

Maychelle Yee, City Clerk